

2021 M L D 1613

[Lahore]

Before Jawad Hassan, J

NISHAN AHMAD alias ZEESHAN---Petitioner

Versus

CIVIL JUDGE and others---Respondents

Writ Petition No.31975 of 2021, decided on 24th May, 2021.

Punjab Rented Premises Act (VII of 2009)---

---Ss.15 & 19---Constitution of Pakistan, Art.199---Constitutional petition---Ejectment of tenant---Relationship of landlord and tenant---Proof---Petitioner/tenant denied relationship of landlord and tenant on the plea that his suit for specific performance of agreement to sell was pending decision---Validity---Proceedings in suit for specific performance of agreement to sell were separate and could not be interlinked with proceedings conducted in rent matter, which had its own merit---If owner/landlord of a property was in personal need of his (rented) property, he/she could not be stand for along period until the decision of another subsequent separate proceedings---If petitioner / tenant would succeed in obtaining decree in his favour in suit for specific performance, he could agitate issue of restoration of possession of demised premises---Benefit of agreement to sell could not be extended to him until it stood proved by Court of competent jurisdiction---High Court declined to interfere in concurrent eviction order passed by Rent Tribunal and Lower Appellate Court---Constitutional petition was dismissed, in circumstances.

Mrs. Azra Riaz v. Additional District Judge and others 2021 CLC 623 and Noor-un-Nisa and others v. United Bank Limited through Authorized Officers and 2 others PLD 2021 Lah. 90 rel.

Mushtaq Ahmad Mohal, Advocate Supreme Court for Petitioner.

ORDER

JAWAD HASSAN, J.---The Petitioner has filed this writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 against judgments dated 21.01.2021 and 09.04.2021 (the "Impugned Judgments") passed by the Civil Judge 1st Class/Rent Tribunal, Sargodha and the Additional District Judge, Sargodha respectively.

2. Mr. Mushtaq Ahmad Mohal, ASC submits that the Respondents Nos.3 and 4 filed an ejectment petition under Section 15 read with Section 19 of the Punjab Rented Premises Act, 2009 (the "Act") before the Rent Tribunal regarding shop No.10 being Khewat No.41,

Khatooni No.43, Khasra No.37/2/2, situated at Gunjial Shopping Center (Bara Market), Block No.8, Chak No.45/NB, Tehsil and District Sargodha (the "Demised Premises") for eviction of the Petitioner as well as the Respondent No.5 from it. He further submits that the Petitioner immediately filed an application for leave to defend under Section 22 of the Act by raising therein all his objections, including the objections (i) that there was no relationship of landlord and tenant between the parties; and (ii) that an agreement to sell was executed between the parties, on the basis of which, a suit for specific performance is pending before the Civil Court of competent jurisdiction for determining title over the Demised Premises. He maintains that in his application for leave to defend, the Petitioner specifically denied the relationship of landlord and tenant between the parties but the Rent Tribunal did not frame any issue on this point and allowed the ejectment petition of the Respondents. He next contends that at appellate stage, the Lower Appellate Court has also not considered the grounds/objections taken by the Petitioner in his application for leave to defend, while dealing with the matter in a hasty manner, hence, this petition.

3. Arguments heard. Record perused.

4. The stance taken by the Petitioner that he had purchased the Demised Premises, therefore, the relationship of landlord and tenant between the parties came to an end, does not find support of any documentary evidence/proof. The Petitioner was legally bound to approach the Rent Tribunal for revocation of the tenancy agreement if there was any title document in his favour with regard to the Demised Premises but he failed to meet this deficiency. According to the provisions of Section 10 of the Act, after execution of the tenancy agreement in respect of the Demised Premises, the subsequent agreement to sell or any other related document of similar kind executed between the landlord and the tenant, will not adversely affect the relationship of landlord and tenant unless the tenancy is revoked through a written agreement duly entered before the Rent Registrar as required under Section 5 of the Act. Therefore, the contention of learned counsel for the Petitioner that there exists no relationship of tenant and landlord between the parties, does not have any support of law. This Court in the recent judgment reported as *Mrs. Azra Riaz v. Additional District Judge and others* (2021 CLC 623), while discussing in detail various mandatory provisions of the Act, has held that during subsistence of tenancy agreement, the tenant has no right to challenge title of landlord because once a tenant is always a tenant. In the said judgment, it has been further elaborated by this Court that in the normal circumstances, in absence of any evidence to the contrary, the owner of a property by virtue of his or her title is recognized to be the landlord of the said property while a person in possession of the premises will be presumed as tenant under the law. In another judgment cited as *Noor-un-Nisa and others v. United Bank Limited through Authorized Officers and 2 others* (PLD 2021 Lahore 90), this Court also observed that it would be the first priority of the Courts to make sure access to justice in timely fashion under the rule of law while pending decision in the rent matter until the outcome of suit for specific performance, will hamper the normal course of law.

5. As regards the pendency of suit for specific performance of agreement to sell, the said proceedings are totally separate and cannot be interlinked with the proceedings being conducted in a rent matter which has its own merit. If the owner/landlord of a property is in personal need of his (rented) property, he or she cannot be stand for a long period until the

decision of another subsequent separate proceedings. Moreover, if the Petitioner succeeds in obtaining decree in his favour in the suit for specific performance, he may agitate the issue of restoration of possession of the Demised Premises, however, the benefit of agreement to sell cannot be extended to him until it stands proved by the Court of competent jurisdiction.

6. In view of what has been discussed above, I find no illegality or perversity in the Impugned Judgments which have rightly been passed by the Courts below. This writ petition is dismissed in limine, being not maintainable.

MH/N-15/L

Petition dismissed.